

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 28, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. LOUIS E. PADILLA
Case No. CL25-05738**

Motion to Enforce Settlement

TENTATIVE RULING

The motion is denied.

Plaintiff has not filed a proof of service demonstrating that Defendant has been served with the motion papers in a manner authorized for the service of a summons at least 16 court days prior to the hearing.

**AMERICAN EXPRESS NATIONAL BANK vs. AUBREY LARGAESPADA; ET AL.
Case No. CL26-01992**

Motion to Quash Service of Summons

TENTATIVE RULING

The motion to quash the summons filed by Defendant Largaespada is denied.

The return of a registered process server creates a presumption, affecting the burden of production of evidence, of the facts stated in that return. (Evid. Code § 647.) The effect of this presumption is to assume the truth of the presumed fact unless and until

evidence is introduced to support a finding of the presumed fact's nonexistence. (Evid. Code § 604; *Palm Prop. Invs., LLC v. Yadgear* (2011) 194 Cal.App.4th 1419, 1428.) The court need not accept a defendant's self-serving declaration of nonservice. (*Am. Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Defendant has not overcome the presumption of the truth of the facts stated in the registered process server's return. The process server described the characteristics of the unidentified woman on whom the papers had been served. (Proof of Service (5/7/26).) Defendant admits that she was home when service had been attempted and does not dispute that she, or someone else at the residence, matches the description given by the process server. The address given on Defendant's motion matches the address where service was attempted. Defendant disputes that the process server mailed a copy of the served documents to the address, but presents no admissible evidence based on personal knowledge refuting that the process server deposited the documents to be served in the mail.

JASMINE VANHOOK vs. GENERAL MOTORS LLC; ET AL.
Case No. CU24-06353

Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Plaintiff's unopposed motion for leave to file the proposed first amended complaint is granted. The proposed first amended complaint shall be filed and served within five court days of the hearing. Once the first amended complaint is filed, Defendant's motion for summary judgment shall be taken off calendar as moot.

GOLDEN BANK, NATIONAL ASSOCIATION vs. JIN-VANI HOSPITALITY; ET AL.
CASE No. CU25-03126

Motion to be Relieved as Counsel

TENTATIVE RULING

The unopposed motion by Defense Counsel for Defendant JIN-VANI HOSPITALITY, LLC, is granted.
